

Complaint Report (CCRB)

CCRB Case No :	201201365	C/V Report Date :	Thu, 01/26/2012
Complaint Type :	CCRB	Investigator :	Max Gross
Complaint Made At :	IAB	Ref. No	12-05469
Received Date (CCRB) :	Tue, 01/31/2012 03:15 PM	Mode :	Phone
Incident Date(s) :	Thu, 01/26/2012 1:45 PM		
Place of Occurrence:	[REDACTED]	Precinct:	42
Location :	Residential building	Boro:	Bronx
Reason for Initial Contact :	C/V intervened on behalf of/observed encounter w/3rd party		
Charges:	Arrest - assault (against a PO)		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Name:	[REDACTED]	Type:	Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Injury Details:	<u>Type of Injury</u>	<u>Description</u>
	Lacerations with Stitches	2 Staples to back of head; three stitches to left elbow.

Name:	[REDACTED]	Type:	Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
SGT	Mervin Montalban	Subject Officer		Hispanic	042	Physical force - (punched/kicked/kneed) - (F) Alleged Victim Uncooperative
POF	Alfonsina Delacruz	Subject Officer		Hispanic	042	Physical force - (punched/kicked/kneed) - (F) Alleged Victim Uncooperative
POM	Jodi Brown	Subject Officer		Black	042	Physical force - (fought) - (F) Alleged Victim Uncooperative
POM	Robert Jaquez	Subject Officer		Hispanic	042	Nightstick as club (incl asp & baton) - (F) Alleged Victim Uncooperative
POM	Robert Jaquez	Subject Officer		Hispanic	042	Pepper spray - (F) Alleged Victim Uncooperative
POM	Robert Jaquez	Subject Officer		Hispanic	042	Physical force - (fought) - (F) Alleged Victim Uncooperative
POM	Nelson Ramos	Subject Officer		Hispanic	042	Physical force - (fought) - (F) Alleged Victim Uncooperative
POM	Jason Vasquez	Subject Officer		Hispanic	042	Physical force - (fought) - (F) Alleged Victim Uncooperative
	Officers	Subject Officer			042	Nightstick as club (incl asp & baton) - (F) Alleged Victim Uncooperative
	Officers	Subject Officer			042	Physical force - (punched/kicked/kneed) - (F) Complainant Uncooperative
	Officers	Subject Officer			042	Premises entered and/or searched - (A) Complainant Uncooperative
	Officers	Subject Officer			042	Word - (D) Complainant Uncooperative
	An officer	Subject Officer			042	Physical force - (punched/kicked/kneed) - (F) Alleged Victim Uncooperative

Initial Complaint Narrative

01/27/12**THE ORIGINAL LOG #12-05301 WAS ASSESSED AS AN "OG". THIS IS A SPIN OFF CCRB**FADO-FORCE// FADO-OFF. LANG. ALLEGATIONS**01/26/12 @ 1402 hrs Ext 2248 ***** 911 Operator# 1849 called the command/center to report that [REDACTED] called 911 stating that he was assaulted by three unidentified subject/officer's. [REDACTED] stated that he witnessed from his third floor apartment ten (10) unidentified subject/officer's trying to handcuff a suspect. [REDACTED] stated that he told S/O: "Ten people on one guy, maybe you can put the cuff on". [REDACTED] stated that three unidentified subject/officer's came upstairs, kicked the door open, punched [REDACTED] in the neck, and kicked him in the ribs and called him "pussy". [REDACTED] described subject/officer# 1 as Dark skin, Black male, 6 feet, about 200 lbs. Subject/officer# 2 is described as Latino, caramel color, 5.8, 175 lbs, and subject/officer# 3 is described as White or light skin Latino.

Witness